



Stephen Cooke <stephencooke.c@gmail.com>

FW: Stephen Cooke - Trust Deed and further actions

1 message

Matthew Shepherd <mshepherd@ramsdenslaw.com.au>

Fri, Jul 5, 2024 at 4:37 AM

To: "stephencooke.c@gmail.com" <stephencooke.c@gmail.com>

Dear Stephen

Following on from our phone call of today:

Trust and property searches

1. Avalon will email you re doing property searches against the trust to see if it is registered as the owner of any real estate. I doubt Heather would transfer the Southport property to it as that would create stamp duty and capital gains tax issues for her. Let us know if you wish us to do the searches.
2. I attach the email from other side when they gave us the Trust Deed. It advised that at that time the Trust had no bank accounts. A trust is a common way for professionals such as doctors to bill patients and receive payment in a tax effective way. Her company is the trustee so if she was to transfer Southport or any matrimonial property to it, it would still be treated as her property. You said today that she had not used a trust earlier. That might be because she could save tax (which benefited the family) by distributing some income to you.

Responding to Heather's Application in a Proceeding

3. I attach a Response to Heather's Application in a Proceeding prepared by Avalon and reviewed by me. As you will see, it seeks
 - a. the dismissal of her Application in a Proceeding (that is, her application to discharge the April Orders re the mortgage, and reduce the spouse maintenance to \$500 per week until the sale of the house).
 - b. that the spouse maintenance be extended for 3 months at \$1,200, and then \$900 per 9 months. I think this is unlikely to succeed.
 - c. That Order 3e (re Heather getting an interim amount of \$200,000 from the house) be discharged. This was discussed at mediation and I think we should clarification from the other side about this. See my suggested email below.
4. We also need to:
 - a. Update your financial statement with special attention to your expenses. Avalon sent you your old financial statements to review and update.
 - b. Prepare an affidavit addressing -
 - i. your steps to obtain to employment.
 - ii. your expenses. This should include enquire about rental properties.
 - iii. The mathematics of why if Heather get's \$200,000 from the house on an interim basis your final claim might be effected.

5. Your expressed concern re costs. If you wish to avoid costs order against you, you need to seek Orders that are likely to be made. If you wish to obtain a costs order, you need to do the same. We have previously discussed that cost orders are unusual and are only made when one of the grounds [in s117](#) are met.

Directions Hearing Tuesday

6. The directions hearing on Tuesday 9 July is at 11.30. I attach email from the court about it including a Teams link. You do not need to say anything. I need to get instructions from you beforehand about some issues including:
- a. You might want, or Heather's lawyer or the Registrar might raise:
 - i. whether an independent children's lawyer (ICL) should be appointed. The ICL is funded by the Legal Aid Commission that seeks contribution to those cost from both parents.
 - ii. Whether a full family report should be obtained. You have raised your concerns re Heather's mental state, and drinking, and also the boy's wishes. We would need to carefully consider what expert might be able to address these matters. These reports can be expensive and the court would normally order each parent pay one half.
 - b. You have raised the boys' wishes with me. A family report and an ICL are ways to get evidence about the boys' wishes before the Court. Both create costs which are generally shared. Remember that we have not yet raised with the other side the option of the current orders being tweaked (one extra night in the offweek). At this stage, from your court documents the Court and Heather think you are seeking that the boys' live primarily with you.
 - c. If you wish I can add the suggestion of a family report and ICL to the draft letters below to the other side. The Court expects lawyers talk before direction hearing in order to decide on the best next steps for the matter. If you want a family report, the expects parties and lawyers to decide on whom and how they are paid. So I would need to discuss this with the other side.

Here are two draft letters I suggest I send to the other side. Would you like me to do so? Would you like me add the ICL and the family report to letter 2?

[Letter 1](#)

WITHOUT PREJUDICE

Dear Colleagues

We refer to the mediation on 27 June. Various options for settlement were discussed.

Our client wanted to defer making a decision on the option of receiving 100% of the net Merewether sale proceeds (plus a super split) until contracts are exchanged so the selling price and thus the net proceeds are known.

There was also discussion about your client foregoing getting – in the absence of final Orders - \$200,000 from the

sale proceeds pursuant to the interim financial Orders of April. Could you confirm if your client is still agreeable to this?

Letter 2

Directions Hearing

We note the matter is listed for direction Tuesday 9 July.

In the absence of a final agreement by then, we presume both parties would want a date for Compliance and Readiness Hearing on both the parenting and property issues.

Application in a Proceeding

Orders 1, 2, 3 and 4 sought in Heather's Application in na Proceeding now seem resolved. Stephen has paid the amounts listed in Order 4.

We may have misunderstood them but Orders 6 and 6 seem inconsistent. Order 5 seeks that Heather pay the outgoings including mortgage but be reimbursed 50%. Order 6 seeks that loan repayments be paused. Could you please clarify so we can get instructions. We have previously advised you that Stephen is agreeable to Heather maintaining mortgage levels at the same level as in April – but not the increased amount.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenslaw.com.au



A SMARTER
PERSPECTIVE

T: 1300 749 709 | **W:** ramsdensfamilylaw.com.au

A: Level 6, 15 Castlereagh Street, Sydney NSW 2000

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BOOK A
MEDIATION WITH ME

From: Avalon Carnall <acarnall@ramsdenlaw.com.au>
Sent: Friday, July 5, 2024 3:54 PM
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Subject: Stephen Cooke - Trust Deed and further actions

Dear Matthew,

We received Heather's Trust Deed (dated 11 April 2024) via a letter from her solicitor on 7 June 2024 (**attached**). We appears we provided it to Stephen around that date.

Please also see the draft Response to the AIP (**attached**). I have not provided this to Stephen.

I have asked Stephen for his instructions regarding:

- a. further searches;
- b. the expenses in Part N of his Financial Statement;
- c. any evidence from him about his attempts to obtain employment.

Thanks.

Regards,

AVALON CARNALL
Lawyer

D: (02) 8123 1224
E: acarnall@ramsdenlaw.com.au



A SMARTER
PERSPECTIVE

T: 1300 749 709 | **W:** ramsdenfamilylaw.com.au

A: Level 6, [15 Castlereagh Street](#), Sydney NSW 2000

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----- Forwarded message -----

From: Tayleh Soames <tsoames@delaneyroberts.com.au>
To: Matthew Shepherd <mshpherd@ramsdenslaw.com.au>
Cc: Anna Roberts <aroberts@delaneyroberts.com.au>, Amy Szlicht <aszlicht@delaneyroberts.com.au>
Bcc:
Date: Fri, 7 Jun 2024 05:33:22 +0000
Subject: Cooke & Cooke - Family Law Matters

You don't often get email from tsoames@delaneyroberts.com.au. [Learn why this is important](#)

Dear Colleagues

Please see our **attached** letter dated 7 June 2024. Our client's disclosure documents can be accessed in the below Dropbox link:

<https://www.dropbox.com/scl/fo/yuh87dw07yqqwyjkhls6q/AAy1AFy7HDKNzrJroSLKQLQ?rlkey=1lsgrfoz32cxbuygd5030ij67&st=wxmbha5e&dl=0>

Yours faithfully

TAYLEH SOAMES

Associate Solicitor

LLB GradDipLegPrac, LLM (Applied Law)



T 02 4952 3901

E tsoames@delaneyroberts.com.au

274 Brunker Road, Adamstown NSW 2289

delaneyrobertsfamilylawyers.com.au

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----- Forwarded message -----

From: Reece Ramsden <r Ramsden@ramsdenlaw.com.au>

To: All Sydney <AllSydney@ramsdenlaw.com.au>

Cc:

Bcc:

Date: Fri, 5 Jul 2024 02:40:23 +0000

Subject: FW: Procedural Hearing at 11:30am on Tuesday 9 July 2024 [SEC=OFFICIAL]

Regards,

REECE RAMSDEN

Partner (Director)

Accredited Specialist in Family Law

D: (02) 8123 1223

E: r Ramsden@ramsdenlaw.com.au



A SMARTER
PERSPECTIVE

T: 1300 749 709 | W: ramsdenfamilylaw.com.au

A: Level 6, 15 Castlereagh Street, Sydney NSW 2000

Email Disclaimer & Anti-Fraud Information

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From: Case Manager Judicial Registrar Furner <casemanager.jrFurner@fcfcoa.gov.au>

Sent: Friday, July 5, 2024 10:41 AM

To: Dean Russo <info@deanlawyers.net>; brooke@brookeharrislaw.com.au; familylaw@mullanelindsay.com.au; contact@lucyurachlawyers.com.au; mail@nlegal.com.au; reception@baleboshev.com.au; reception@delaneyroberts.com.au; Reece Ramsden <r Ramsden@ramsdenlaw.com.au>; joanp@midcoast.com.au; Melanie Tait <info@smokefamilylaw.com.au>; Graham & Shah Solicitors (Applicant's solicitor) <admin@gsfamilylaw.com.au>; admin@aljlegal.com.au; Reception - Peter Hamilton & Associates <reception@phlaw.com.au>; reception@gflawyers.com.au

Cc: ncc27752021@federalcourts.gov.au; ncc31902022@federalcourts.gov.au; ncc38962023@federalcourts.gov.au; NCC28922023@federalcourts.gov.au; ncc4832024@federalcourts.gov.au; ncc5462024@federalcourts.gov.au; ncc5562024@federalcourts.gov.au

Subject: Procedural Hearing at 11:30am on Tuesday 9 July 2024 [SEC=OFFICIAL]

OFFICIAL

You don't often get email from casemanager.jrfurner@fcfcoa.gov.au. [Learn why this is important](#)

Dear Parties & Practitioners,

The following matters are scheduled for a **Procedural Hearing at 11:30am on Tuesday 9 July 2024** and will be conducted using Microsoft (MS) Teams.

- NCC2775/2021 - Cosa E C J & Sarraf A
- NCC3190/2022 - Jaques D W & Ferguson C E
- NCC3896/2023 - Cooke S C & H A
- NCC2892/2023 - Campbell W W & S L
- NCC483/2024 - O'Brien J & O'Brien J S
- NCC546/2024 - Ward M S & Trotter S A
- NCC556/2024 - Rowe J E & Gallagher C K

Please read all information below carefully to make sure that you can properly connect (via the link below) and participate in your hearing.

Please be advised that where a party is self-represented and an email address has been provided, they have been blind copied (Bcc'd) into this correspondence.

If the email for a Respondent party has not been provided to the Court can the legal representative for the Applicant please forward this email to their last known email address.

Virtual Court Event Etiquette

Ahead of your appearance, please review the Court's [Guidance about Court Etiquette](#) and watch this [Video](#) which addresses what to expect when attending a Court hearing. If you are unclear about type of event your matter is listed for, the Court website provides details on [Hearing Types in Family Law matters](#).

The judicial officer presiding over this event should be addressed as Judicial Registrar Furner.

There may be a number of a number of people with different matters connected to the same MS Teams hearing as yours. You must remain on mute at all times unless you are asked to address the Registrar. You may be required to wait until the Judicial Registrar is ready to call your matter. You may also be stood down and asked to dial back into the meeting at another time.

Failure to adhere to Court Etiquette may result in your removal from the Microsoft Teams meeting.

How to Connect to the Hearing

Connect to your MS Teams hearing 10 minutes before the scheduled time above by clicking on the '*Microsoft*

Teams Meeting' link at the bottom of this page.

The Court website provides a number of resources to assist you in joining a virtual court event. Ahead of your appearance please carefully review the [Practitioner and Litigant Guide to Electronic Hearings and Microsoft Teams](#) and the [Guidance about Electronic Hearings](#).

Documents

All necessary documents must be filed (by e-filing on the [Commonwealth Courts Portal](#)) by the date and time in your Court Orders or otherwise in accordance with the Court [Rules](#).

Any additional material (for example, a Minute of Proposed Consent Orders) should be emailed to all parties and casemanager.JRFurner@fcfoca.gov.au.

Rule 12.06 of the [Federal Circuit and Family Court of Australia \(Family Law\) Rules 2021](#) and paragraph 5.7 of the *Central Practice Direction – Family Law Case Management* requires that no later than 1 day prior to the above Court event each unrepresented party and the lawyer for each party not in receipt of legal aid must file with the Court and serve on each other party a costs notice that:

- For an unrepresented party, sets out the actual costs incurred by the party up to the above Court event, the estimated future costs of the party up to and including each future court event, and where the proceedings are financial proceedings the source of funds those costs from which those costs have or will be paid.
- For a lawyer representing a party not in receipt of legal aid, sets out that party's actual costs (paid and owing) up to the above Court event, the estimated future costs of the party up to and including each future court event, any expenses (paid and payable, and if not known then estimated) to an expert witnesses, and where the proceedings are financial proceedings the source of funds from which those costs have or will be paid.

Support Services

The Court website provides information regarding a number of [Family Law Support Services](#) to assist litigants in addition to guidance if you have concerns about your [Safety in attending Court](#).

DUTY LAWYER: Family Advocacy and Support Services (FASS)

FREE legal advice and other support services may be available if:

- you do not have your own lawyer and require advice on the day of your court event; and/or
- you require support and planning including in relation to your safety, accessing accommodation, financial support or drug and alcohol services.

FASS can provide support and free legal advice at Court. Please visit the [FASS Website](#) for more information. If required, you can ask the Court to stand your matter down while you obtain this advice and support.

Microsoft Teams Meeting

Join on your computer or mobile app

[Click here to join the Procedural Hearing before Judicial Registrar Furner](#)

Note: The hearing will be conducted by video-conference and all parties/solicitors/counsel are expected to join by Microsoft Teams video and audio link. In the event of any technical difficulties, liberty may be granted to join by telephone using the details below:

Dial +61 2 9161 1229, Enter Conference ID: 888 921 152#

For solicitors - should your client or any counsel engaged be appearing from a location separate from you, please forward the below link to them. The Court takes no responsibility for providing this link to represented parties or counsel.

Should you have any queries in relation to this matter, please contact the [National Enquiry Centre](#).

Regards,

Tim Outram

Chambers of Judicial Registrar Furner

Federal Circuit and Family Court of Australia

p. 1300 352 000 | e. CaseManager.JRFurner@fcfcoa.gov.au | w. www.fcfcoa.gov.au

4 attachments



Letter to Ramsden Family Law (disclosure) 07.06.2024.pdf

220K



Cooke & Cooke - Family Law Matters.eml

341K



FW: Procedural Hearing at 11:30am on Tuesday 9 July 2024 [SEC=OFFICIAL].eml

124K



DRAFT Response to an Application in a Proceeding.docx

42K